



SPONSOR: Sen. Sturgeon & Rep. K. Williams
Sen. Lockman; Reps. Berry, Burns

DELAWARE STATE SENATE
153rd GENERAL ASSEMBLY

SENATE BILL NO. 227

AN ACT TO AMEND TITLE 14 OF THE DELAWARE CODE RELATING TO DIVISION III EQUALIZATION FUNDING.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

Section 1. Amend § 1707, Title 14 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows:

§ 1707. Division III equalization funding.

(i) ~~A committee, composed of not less than 10 or more than 15 members, shall be appointed by the Secretary of the Department of Education to annually review and make recommendations on the equalization formula. The committee shall also be empowered to analyze other issues and concerns related to equalization that impact the State's ability to achieve the basic purpose of equalization for Delaware's school districts. The committee shall include at least the following: a representative of the State Board of Education; a representative from the Governor's Office designated by the Governor; at least 1 member each from the House of Representatives and the State Senate designated by the Speaker of the House and the President Pro Tempore of the Senate, respectively; the Secretary of Finance or the Secretary's designee; the Director of the Office of Management and Budget or the Director's designee; the Controller General or the Controller General's designee; a representative of the State Education Association designated by that organization; and at least 3 representatives of the local school districts, 1 from each county. [Repealed.]~~

SYNOPSIS

This Act sunsets the committee that reviews and makes recommendations on the equalization formula for school districts under § 1707(i) of Title 14 (§ 1707(i) committee) because the Public Education Funding Commission (PEFC), established under House Concurrent Resolution No. 2 (153rd General Assembly), is currently handling the functions under § 1707(i). The PEFC recommendations will include both how to equalize school funding and how to address equalization in the future. In addition, almost all of the members of the § 1707(i) committee are members of the PEFC but the membership of the PEFC also includes stakeholders who are not on the § 1707(i) committee. The PEFC is holding public meetings to discuss and make recommendations on the equalization formula and how to periodically review the formula.

Author: Senator Sturgeon